

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 12495 of 2016

Md. Ariful Islam @ Akter and another
.....Convict-appellant.

-Versus-

The State
.....Respondent.

None appears
.....For the appellant.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.
.... For the respondent.

Heard on 11.01.2024 and
Judgment on 16.01.2024

Sheikh Abdul Awal, J:

This Criminal Appeal at the instance of convict appellant, Md. Ariful Islam @ Akter and another is directed against the judgment and order of conviction and sentence dated 13.11.2016 passed by the learned Joint Sessions Judge, 2nd Court, Faridpur in Sessions Case No. 72 of 2007 arising out of Sadar G.R No. 246 of 2006 corresponding to Kotwali Police Station Case No. 06 dated 07.08.2006 convicting the accused-appellant

under table 3(Ka) of section 19(1) and 19(4) of the Madak Drobbya Niyontron Ain, 1990 and sentencing them thereunder to suffer rigorous imprisonment for a period of 2(two) years and to pay a fine of Taka 5,000/- (five thousand) in default to suffer simple imprisonment for a period 03 (three) months more.

The prosecution case, in brief, is that one, Nurul Islam, DAD, RAB-8, Company No.2, Faridpur Camp as informant on 07.08.2006 at about 13:05 hours lodged an Ejahar with Kotwali Police Station against the accused-appellant, Md. Ariful Islam @ Akter stating, inter-alia, that on 06.08.2006 he along with RAB forces were while on usual duty got a secret information that the accused-appellants is doing phensidyl business and then the informant party rushed there and apprehended accused No.1, Ariful Islam @ Akter along with 1 bottle phensidyl while the accused No.2 Khuki somehow managed to escape and thereafter, the informant party went to the house of accused No.2 Khuki at “Akteruzzaan Master Bari” under Faridpur Pourashava and recovered 9 bottles of phensidyls from under the khat of accused No.2 Khuki and thereafter, the informant party seized those phensidyls by preparing seizure list in presence of the witnesses.

Upon the aforesaid First Information Report, Kotwali Police Station Case No. 06 dated 07.08.2006 under table 3(ka) of section 19(1) of the Madok Drabya Niyantran Ain, 1990 was started against the convict-appellant No.1, Md. Ariful Islam @ Akter.

Thereafter, one Habibur Rahman, Sub Inspector of police investigated the case, who during investigation examined the witnesses under section 161 of the Code of Criminal Procedure and obtained chemical examination report and after completion of investigation submitted charge sheet against the accused-appellants, vide charge sheet No. 196 dated 04.06.2009 under table 3(ka) of section 19(1) of the Madok Drabya Niyantran Ain, 1990.

Thereafter, the case record was sent to the Court of learned Sessions Judge, Faridpur, wherein it was registered as Sessions Case No. 72 of 2007. Ultimately, the case was transmitted to the Court of the learned Joint Sessions Judge, 2nd Court, Faridpur for disposal, wherein the accused-appellants were put on trial to answer a charge under table 3(ka) of section 19(1) of the Madok Drabya Niyantran Ain, 1990 in which the accused-appellants pleaded not guilty and prayed to be tried stating that they have been falsely implicated in this case.

At the trial the prosecution side examined in all 09(nine) witnesses to prove its case.

On conclusion of trial, the learned Joint Sessions Judge, 2nd Court, Faridpur by the impugned judgment and order dated 13.11.2016 found the accused-appellants guilty under table 1(Ka), section 19(1) and 19(4) of the Madak Drobbya Niyontron Ain, 1990 and sentenced them thereunder to suffer rigorous imprisonment for a period of 2(two) years and to pay a fine of Taka 5,000/- (five thousand) in default to suffer simple imprisonment for 03(three) months more.

Being aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 13.11.2016, the accused-appellants preferred this criminal appeal.

No one found present to press the appeal on repeated calls despite of fact that this criminal appeal has been appearing in the list for hearing with the name of the learned Advocate since long.

In view of the fact that this petty old case has been dragging before this Court for near about 8 years arising out of 2 years sentence, I am inclined to dispose of it on merit on the basis of the evidence and materials on record.

Ms. Kohenoor Akter, the learned Assistant Attorney-General, appearing on behalf of the State-Respondent supports the impugned judgment and order of conviction and sentence dated 13.11.2016, which was according to her just, correct and proper.

Having heard the learned Assistant Attorney General, perused the memo of appeal, first information report, charge sheet, deposition of witnesses and other materials on record including the impugned judgment and order of conviction.

On scrutiny of the record, it appears that the informant (PW-1) on the basis of a secret information he along with RAB forces rushed to the place of occurrence and apprehended the accused-appellant No.1 and recovered (1+9) = 10 bottles of phensidyl syrup and thereafter, the informant party seized those heroin by preparing seizure list in presence of the witnesses. It further appears that Investigating Officer during investigation examined the witnesses under section 161 of the Code of Criminal Procedure and submitted charge sheet against appellants.

At the trial the prosecution to prove its case examined in all 09(nine) witnesses out of which PW-1, Md. Nurul Islam (informant) stated in his deposition that

he along with RAB forces apprehended the accuse-appellant No.1 and recovered total 10 bottles phensidyl for the possession and control of the accused appellants. This witness proved the seizure list as “Ext.-2” and his signature thereon as “Ext-2/1” and also identified the material exhibit as “Ext.-I”. This witness in his cross-examination stated that- “জন্ম তালিকায় এম সি সি নং/আসামীর কোন স্বাক্ষর নাই। ঘটনাস্থলের বাড়ি যে আসামী খুঁজির তম্মর্মে কোন কাগজপত্র দাখিল করিনি।” PW-2, PW-3, PW-4 and PW-6 are members of RAB forces, who in their respective evidence corroborated the evidence of PW-1 in respect of all material particulars in details. PW-5, was tendered by the prosecution. PW-7 and PW-8, are seizure list witness, who were declared hostile. PW-9 is also seizure list witness, who proved his signature in the seizure list as “Ext-2/4”.

From the above quoted evidence, it appears that all the witnesses except PW-8 corroborated the evidence of PW-1 as to recovery of total 10 bottles of phensidyl from the possession and control of the accused-appellants. It further appears that the alleged seized phensidyl syrups were examined by the Chemical Examiner, who submitted his report stating that during examination he found the existence of codeine in the sample of phensidyl.

It is found that the trial Court below in the facts and circumstances of the case and on due consideration of the entire evidence and materials on record came to the conclusion that- “উক্ত রাসায়নিক রিপোর্ট পর্যালোচনায় দেখা যাচ্ছে যে রাসায়নিক পরীক্ষার জন্য প্রেরিত কাচের বোতলে রক্ষিত বাদামী তরল পদার্থে কোডিন পাওয়া গিয়েছে যাহা অপিয়াম উদ্ভূত। সূতরাং আসামীদ্বয় নিজ দখলে মাদক দ্রব্য সংরক্ষণ করে মাদকদ্রব্য নিয়ন্ত্রণ আইন ১৯৯০ এর অধীনে অপরাধ করেছে। অপরদিকে আসামীদ্বয় যে অপরাধ করেনি সেটা আসামীদ্বয় প্রমাণ করতে সক্ষম হয়নি।” and on this finding he found the accused-appellants guilty under table 3(Ka) of section 19(1) and 19(4) of the Drobbya Niyontron Ain, 1990 and sentenced them thereunder to suffer rigorous imprisonment for a period of 2(two) years and to pay a fine of Taka 5,000/- (five thousand) in default to suffer simple imprisonment for 03 (three) months more. In view of the attending facts and circumstances of the case and the evidence on record, I find no reason to disbelieve the evidence of police witnesses whatsoever. I find no flaw in the reasonings of the trial Court.

However, considering the law, facts and circumstances of the case as discussed above, particularly the fact that only 10 bottles of phensidyl were recovered and the convict-appellants have already been suffered their sentence to some extent and faced the agony of the protracted prosecution and also suffered

mental harassment for a long period, I think that, the ends of justice, will be met in the facts and circumstances of the case if the sentence of fine is maintained and the substantive sentence is reduced to the period already undergone.

Learned Assistant Attorney General has, of course, been able to defend this case on merits but practically has nothing to say insofar as reduction of sentence imposed upon the appellant is concerned.

The appeal is, consequently, dismissed with modification of sentence. The sentence of imprisonment for a period of 2 years is reduced to the period of sentence already undergone. Sentence of fine is, however, maintained. The accused-appellant may be discharged from his bail bonds, if he deposits the fine.

Send down the lower Court records at once.